

well-established by case-law that third-party observations can be considered, both at first instance and on appeal, there is no obligation on the board beyond such consideration and no right of a third party to be heard on the admissibility of its observations or any evidence in support of them. The actual parties to proceedings naturally have the right to be heard in relation to such observations, but their admissibility is entirely a matter for the board. Parties to the proceedings can comment at any stage on new facts and evidence emerging from third-party observations filed after expiry of the opposition period, if they think that these could influence the decision. The opposition division or the board of appeal, exercising its discretion, is then obliged to rule on whether or not to admit the late-filed comments into the proceedings (T 1756/11).

In T 283/02, the opposition division had duly forwarded the observations by third parties to the patentee, who had made no comment. The failure of the opposition division to mention these observations in its decision did not constitute a procedural violation, even though a mention would have been desirable.

In G 2/19, the Enlarged Board held that a third party within the meaning of Art. 115 EPC who has filed an appeal against a decision to grant a European patent has no right to have its request for an order that examination proceedings in respect of the European patent be reopened for the purpose of removing allegedly unclear claims (Art. 84 EPC) heard at oral proceedings before a board of appeal.

4. Third-party observations in opposition-appeal proceedings

4.1. Third-party observations and the scope of opposition

Examination of an opposition is limited to the extent to which the patent is opposed in the notice of opposition. If the opponent limits the notice of opposition to certain matters, the remaining matters are not opposed within the meaning of Art. 101 and 102 EPC 1973 or the subject of any proceedings within the meaning of Art. 114 and 115 EPC 1973 (G 9/91 and G 10/91, OJ 1993, 408 and 420). The opponent thereby deliberately refrains from exercising his right under the EPC to oppose the other matters covered by the patent and, consequently, the EPO has no competence to deal with them at all. (T 737/92, T 653/02, T 31/08).

Following G 9/91 and G 10/91, the board in T 580/89 of 28 April 1993 concluded that it had no power to examine the patentability of the subject-matter of claims which had not been opposed in the notice of opposition but were the subject of observations by the third party under Art. 115 EPC 1973 which had not reached the EPO until after the decision of the opposition division had been taken.

4.2. Introducing a fresh ground for opposition in opposition proceedings

An opposition division may, in application of Art. 114(1) EPC, of its own motion raise a ground for opposition not covered by the statement pursuant to R. 76(2)(c) EPC but referred to by a third party under Art. 115 EPC after the expiry of the time limit laid down in Art. 99(1) EPC. The Enlarged Board emphasised that the consideration of grounds not

properly covered by the statement should only take place before the opposition division in cases where, *prima facie*, there were clear reasons to believe that such grounds were relevant and would in whole or in part prejudice the maintenance of the patent. The possibility under Art. 114(2) EPC of disregarding facts and evidence in support of fresh grounds not submitted in due time should, of course, also be kept in mind (G 9/91, OJ 1993, 408; T 356/94; T 1053/05).

4.3. Introducing a fresh ground for opposition in appeal proceedings

In an appeal procedure the provisions of Art. 114(1) EPC 1973 have to be interpreted in a more restrictive manner than in an opposition procedure and, accordingly, fresh grounds for opposition raised by an opponent or referred to by a third party under Art. 115 EPC 1973 after expiry of the time limit laid down in Art. 99(1) EPC 1973 may in principle not be introduced at the appeal stage, unless the patentee agreed. (G 9/91 and G 10/91, OJ 1993, 408, 420).

In T 667/92 of 27 November 1996, the board disregarded third-party observations because the patentee had not consented to their admission.

In T 1667/07 some documents which were copies of submissions made by third parties during the examination of the application were submitted as evidence in support of fresh grounds for opposition raised for the first time on appeal. The board pointed out that since it cannot consider the fresh grounds of opposition put forward by the appellant for the first time in appeal proceedings – as the patent proprietor opposed to their introduction into the proceedings – it cannot consider **evidence** submitted in their support either.

4.4. Third-party observations presented after expiry of the opposition period

4.4.1 General

Because Art. 115 EPC sets no upper time limit for presenting third-party observations, in principle they can also be filed after expiry of the opposition period, and so even during *inter partes* appeal proceedings. Although the Art. 114(2) EPC provision on late-filed submissions mentions only the parties to the proceedings, established case law holds that submissions (i.e. facts and evidence) emerging from third-party observations not filed until after expiry of the opposition period are likewise to be treated, by way of a legal fiction, as "late". This means that Art. 115 EPC cannot serve to extend third parties' rights, let alone extend them beyond the rights of parties to the proceedings. In other words, where third-party observations are filed after the time limit under Art. 99(1) EPC, the principle enshrined in Art. 114(1) EPC of examination by the EPO of its own motion is to be applied on the fictional basis that those observations are late, i.e. they are subject to the criteria developed in the case law for the board's exercise of discretion in deciding whether to admit late-filed submissions within the meaning of Art. 114(2) EPC. (T 1756/11, see also T 402/12, T 1216/12, T 1528/13, T 1285/15).

Since the RPBA specify some criteria for exercising this discretion in appeal proceedings with respect to the submissions of the parties to the proceedings, these criteria must also

apply to third-party observations. Hence, the criteria laid down in Art. 12(2) RPBA 2020 and 12(4) RPBA 2007 are to be taken into consideration in deciding whether and to what extent the submissions at issue must be considered (T 2255/15).

Irrespective of a third party's legal status, the principle that the EPO must examine the facts of its own motion in first-instance administrative proceedings does not have the same legal importance in judicial appeal proceedings, in particular in inter partes proceedings (G 9/91 and G 10/91, OJ 1993, 408, 420).

In T 1756/11 the board observed that the opposition divisions should at least comment on the relevance of third-party observations, for example in the summons to oral proceedings.

In T 301/95 of 28 March 2000, a third party had alleged public prior use after expiry of the period for opposition, i.e. belatedly. Under Art. 114(2) EPC 1973, it was at the discretion of the opposition division and the board of appeal whether or not to consider the belated submissions, but in deciding whether to do so, the most important criterion was the relevance of the belatedly cited prior art. The observations were not considered.

According to T 923/10 the boards have discretion to take such observations into consideration or to disregard them. When exercising their discretion the boards normally take criteria into account which they consider when they decide about the admissibility of submissions by parties to the proceedings that are considered "late-filed" in view of Art. 114(2) EPC and Art. 12(1), (2), (4) and 13(1), and (3) RPBA 2007. These criteria include the relevance of the submissions filed (see for example T 1137/98, T 390/07, T 544/12). More specifically, it is the boards' established case law that a crucial factor is whether submissions filed late in appeal proceedings are prima facie highly relevant, i.e. likely to change the outcome of the proceedings (T 1216/12). In T 1348/11 the board added that submissions provided by a third party should not be given a more favourable status than submissions of a party to the proceedings to whom Art. 114(2) EPC applies.

In T 1756/11 the board observed that the boards usually have to disregard late-filed third-party observations in opposition appeal proceedings of their own motion, unless they relate to amendments to the claims or other parts of the patent made during the opposition or appeal proceedings.

4.4.2 Third-party observations admitted

In T 1216/12, third-party observations had been filed together with an employee statement asserting that the test results cited in the notice of opposition were erroneous and so irrelevant. The board observed that, since these test results had been used in the contested decision as a basis for assessing whether the claimed subject-matter involved an inventive step, the statement raised serious doubts about that assessment. It therefore admitted the observations as prima facie highly relevant.

In T 1224/09 a third party had submitted documents D53 to D55 (Japanese patent applications) at the start of the appeal proceedings. The board considered documents D53 to D55 to be prima facie relevant, as they had led to the refusal of the corresponding

application before the Japanese Patent Office. The board stated that third party observations could be submitted at any time as long as proceedings were pending. Admitting and considering such observations, however, was an issue to be decided by the competent department of the EPO. In the case of the boards of appeal, the principles set out in Art. 13 RPBA 2007 seemed to be a reasonable basis on which the discretion to admit the third party observations was to be exercised.

The observations under Art. 115 EPC were filed more than 1 1/2 years before the oral proceedings so that the parties and the board had sufficient time to consider the document. The board had also notified the parties that it considers document D 27 to be relevant. None of the parties had requested that the submission of the third party be disregarded. Thus, the board decided to admit the submission of the third party into the proceedings (T 458/07).

4.4.3 Third-party observations not admitted

A document submitted under Art. 115 EPC 1973 during opposition proceedings, but after the time limit for filing the notice of opposition had expired, was discussed in the appeal proceedings, but not taken into account as it was found not proven to be publicly available at the relevant time and thus did not form part of the state of the art (T 314/99).

In T 637/09 the board took into account, when exercising its discretion, that it should not accord the third party within the meaning of Art. 115 EPC more favourable treatment than would be given to an actual party seeking to introduce such submissions at that stage of the proceedings. The third-party observations filed shortly before the oral proceedings were not admitted into the proceedings since their admission would have accorded the third party more favourable treatment than would have been given to an actual party (see also T 346/15).

In T 953/02 the respondent had challenged the submission under Art. 115 EPC 1973 because of a signature which was deficient, i.e. not that of a natural person. The submission by the third party was filed substantially less than one month before the oral proceedings. The board did not admit it into the proceedings.

In T 1528/13, not only had the third-party observations been presented well after the notice of appeal had been filed but neither they nor the evidence produced in support of them appeared prima facie any more relevant than the submissions already on file. See also T 771/13.

5. Remittal following filing of observations

A board may choose to remit a case to the department of first instance as a result of observations filed under Art. 115 EPC. See, for example, T 249/84 and T 176/91 of 10 December 1992.

In T 929/94, a preliminary examination by the board of the third-party observations and the supporting material showed that an entirely new case based on new facts and

evidence had been presented against the patentability of the claimed invention in these observations. In order to preserve the applicant's right to review through appeal of any adverse decision of the department of first instance, the board remitted the case for examination of and decision upon such new material, as requested by the applicant.

In T 41/00, a document submitted during the appeal proceedings by a third party under Art. 115 EPC 1973 appeared to come closer to the claimed subject-matter than any of the prior-art citations considered during the examination proceedings. However, since it remained open to question whether the document had been available to the public at the patent's priority date, the case was remitted to the department of first instance.

In T 848/06 the board intended to remit the case to the department of first instance. The board concluded that it would not be appropriate for the board to take into account the third party observations so as not to prejudice their consideration by the said department.

In T 30/01 the case was remitted to the department of first instance for further prosecution. The board stated that the opposition division would also have to consider whether to admit or disregard the observations presented during the appeal proceedings by the third party and partially incorporated by reference in the respondent's own case.